

## DECLARATION BY COUNT ROSTWOROWSKI.

[*Translation.*]

Count ROSTWOROWSKI, Judge, declares that he is unable to concur in the Opinion given, because, in his view, the two decrees in question of 1935 are not, *in substance*, inconsistent with the Constitution of the Free City of Danzig and do not violate any of its provisions or conflict with any of its principles.

On the other hand, he considers that these same decrees of 1935, having been issued by the Senate alone, are, as regards the *form* of their enactment, contrary to Article 43, paragraph 1, of the Constitution, which requires that legislation must receive the concurrent assent of the *Volkstag* and the Senate. —The argument based on the Enabling Law of 1933 is not, in his view, sound, since the law of 1933 itself, in effect, profoundly modifies the constitutional régime of the Free City. There being no provision in the Constitution authorizing this law, it appears to be a deviation from the terms of the Constitution which can only be made lawful by means of the express approval of the League of Nations. In the absence of such approval, the law of 1933 does not suffice to render the impugned decrees of 1935 lawful and accordingly they remain, as regards the form of their enactment, inconsistent with the Constitution of Danzig.

(Signed) M. ROSTWOROWSKI.